

Manju Srivastava v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 17 January 2020 · WRIT - C No. - 1374 of 2020 · **Writ disposed; Executive Engineer to consider objections by a speaking order; coercive recovery stayed; Section 127 appeal left open if aggrieved.**

HEADNOTE

Without examining the merits of a challenge to an electricity recovery notice, the Court directed the consumer to appear before the Executive Engineer with her objections and evidence, required a speaking and reasoned final order within four weeks, stayed coercive action for eight weeks or until disposal of the objection (whichever earlier), and left any challenge to that final order to the statutory appeal under Section 127 of the Electricity Act, 2003. Default in appearance or in filing objections would revive the recovery citation.

FACTUAL SUMMARY

Manju Srivastava, a consumer, filed a writ petition against a recovery notice dated 31 December 2019 issued by the Executive Engineer, Electricity Distribution Division-I, U.P. Power Corporation Ltd., Basti. She sought quashing of the notice and a mandamus that her objection be considered and no amount recovered. Her counsel submitted that the respondents were taking coercive action without opportunity of hearing and without following the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

relegation to section 127 after speaking order on recovery objections

HOLDING

A writ against an electricity recovery notice may be disposed without examining the merits by directing the consumer to appear before the Executive Engineer with objections and evidence, requiring a speaking and reasoned final order within a fixed time, staying coercive recovery for a limited period, and leaving the consumer, if aggrieved by that final order, to the statutory appeal under Section 127 of the Electricity Act, 2003. Non-appearance or default in filing objections revives the recovery citation. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing a speaking final order on the consumer's objections to the recovery notice, the Court left any further challenge to the statutory appeal under Section 127. ¶ 1

alternative-remedy-section-127-appeal If aggrieved by the Executive Engineer's final order on the recovery objections, the petitioner was left to appeal under Section 127 of the Electricity Act, 2003 in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY NOTICE COMPLIED WITH THE U.P. ELECTRICITY SUPPLY CODE, 2005

Alleged by the petitioner; the Court issued directions without examining compliance. ¶ 1

NOT DECIDED — MERITS OF THE RECOVERY NOTICE AND THE AMOUNT DEMANDED

¶ 1

